

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Reviewing the Basics of a Software License



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Ask your partner:

- How important do you think it is to carefully read a software license agreement?
- Do you think an expensive and inexpensive software should have the same license agreements? Why?

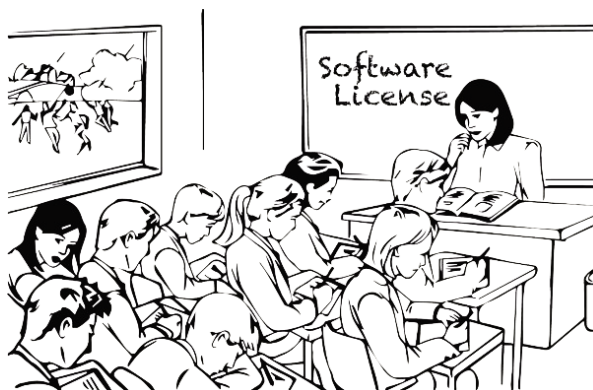
Can Do Statements:

- I can talk about the concept of a license software agreement.
- I can discuss the differences between inexpensive and expensive software in terms of agreements.
- I can talk about the importance of carefully checking a software license agreement.



Let's Explore!

The class discusses the basics of license software agreements.



Instructions: Read the text below.

Professor: Good morning, class. Today we'll be discussing the reading that was due for today. So, Sarah, can you explain what the concept of a license software agreement is about?

Sarah: Of course. A license software agreement is basically a contract that goes into detail about the rights and obligations of the customer and the software vendor.

Professor: You're right. Nowadays, creating and giving services, building relationships, and performing all kinds of communication are tasks that are carried out by computer software. So, as you all can see, the procurement of computer software is massive and the terms should be clear enough between both parts.

Charles: Professor, I read it also establishes the permission that the software vendor gives the customer, and affirms the promises regarding the software quality along with the additional and reasonable services that the customer has access to.

Professor: Very good. Remember that the applicable fees for the use of the software license and its additional features are also mentioned in it.

Sarah: Professor, reading about negotiating the terms of inexpensive and expensive was confusing.

Professor: Well, it's quite simple. Procuring inexpensive software often comes with non-negotiable terms of agreement. The software user must simply accept the terms that are included in the contract at the moment of installing the software. When it is an expensive software, which is tailored for a specific business, a terms negotiation might take place between the vendor and the customer. That's why it is absolutely important for a customer to carefully read the terms of agreement. If the right or obligations that are stated are unreasonable or appropriate, it may lead to significant risks and legal liabilities for the customer. Therefore, it is prudent to review the agreement and carry out the necessary revisions so it is beneficial for both parts.

**Let's Practice!**

Why is it important to check the software license agreement?

Instructions: Use the words from the Word Bank to complete each sentence.

Word Bank

is affected / is affected by / are carefully read by /
are stated by / is carried out

1. Specific terms _____ the clients because they are the most important part of the acquisition.
2. Obligations _____ the software creator. For that reason, it is imperative that the clients read the document attentively.
3. The customer _____ significant risks if they do not know the software requirements and regulations.
4. The pertinent revision of the software license agreement _____ by the customer in order to clarify the information.
5. The client _____ by legal liabilities if they ignore the software license agreement.

**Let's Practice!**

Laura is assigned to talk about expensive and inexpensive software and licenses.

Instructions: Classify the sentences by writing the number of the sentence in the correct category.

1. Using it means that we can copy, use or resell a digital content.
2. Procuring this software often comes with non-negotiable terms of agreement.
3. Buying it from a copyrighted author, artist or manufacturer is one of its characteristics.
4. Negotiating the different terms is possible.
5. Accepting the terms is the only thing customers can do.
6. Complying with some terms is one of its characteristics.
7. Installing and accepting the terms is the process the customer has to follow.
8. Reading the terms carefully is a must for the customer.
9. Tailoring this type of service is possible.

EXPENSIVE SOFTWARE	CHARACTERISTICS OF A LICENCE	INEXPENSIVE SOFTWARE



Extension Activity

I write my own license software agreement.

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Search for further information about how a license software agreement looks like.
- Imagine you are a software developer, so on a poster write a short description of a software package that you would create to cover a specific need.
- On the same poster, write at least 10 different clauses that you would include on your software's license agreement.
- Make a short presentation to your class mentioning your idea of software along with your license clauses.

Self-Assessment

Yes No

- I search for further information about how a license agreement looks like. ☐ ☐
- On a poster I make a short description of a software package that I would create to cover a specific need. ☐ ☐
- On the same poster I write 10 different clauses that I would include in my software's license agreement. ☐ ☐
- I share my software idea and clauses with the whole class. ☐ ☐



Target Words

- negotiate** (verb): to discuss the terms of a contract.
e.g. Professor, reading about negotiating the terms of inexpensive and expensive was confusing.
- tailor** (verb): to adapt something to some particular needs.
e.g. When it is an expensive software, which is tailored for a specific business, a terms negotiation might take place between the vendor and the customer.
- prudent** (adjective): careful, minding the future.
e.g. Therefore, it is prudent to review the agreement and carry out the necessary revisions so it is beneficial for both parts.
- procurement** (noun): an acquisition, a purchase.
e.g. The procurement of computer software is massive and the terms should be clear enough between both parts.
- massive** (adjective): huge, in large quantity.
e.g. The procurement of computer software is massive and the terms should be clear enough between both parts.
- fee** (noun): a price paid for a service.
e.g. Remember that the applicable fees for the use of the software license and its additional features are also mentioned in it.



Learning Points

Simple Present Passive in Affirmative Statements

When we want to give importance to the *object* of a sentence, or when the *subject* is not important or unknown, the **passive voice** is used.

The **passive voice** is used in the *simple present* to talk about situations that occur on a regular basis and its doer is unknown or is not important.

To make the simple present passive in *affirmative form*, the verb **to be** is used in the *present simple* as the auxiliary, followed by the main verb in its *past participle form*. Check the following chart:

Object of the sentence	verb 'to be'	main verb (past participle form)	complement.
<i>A license agreement</i>	is	proposed	<i>by the vendor.</i>

Examples

- *Nowadays, creating and giving services, building relationships, and performing all kinds of communication are tasks that are carried out by computer software.*
- *If the right or obligations that are stated are unreasonable or appropriate, it may lead to significant risks and legal liabilities for the customer.*
- *Remember that the applicable fees for the use of the license software and its additional features are also mentioned in it.*

Verb + Ing, Verbs as Sentence Subjects

The **gerund**, which is the **-ing** form of a verb, can be used as the subject of a sentence.

Gerunds can be used as regular nouns. The gerund is a word that ends in **-ing**, which is made from a verb.

The gerund can be used as the subject of a sentence.

Take a look at the following examples:

Writing a clear software agreement would make negotiations much easier.

Assessing the company's needs leads to a better selection of vendor's proposals.

Examples

- *Reading about negotiating the terms of inexpensive and expensive was confusing.*
- *Procuring inexpensive software often comes with non-negotiable terms of agreement.*

